

**Court No. - 21**

**Case :-** WRIT - C No. - 6810 of 2023

**Petitioner :-** Ramesh Chandra

**Respondent :-** State Of U.P. And 2 Others

**Counsel for Petitioner :-** Rahul Chaudhary

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Prashant Kumar,J.**

Provisional assessment notice was issued by respondent No.3 to the petitioner in a case of theft of electricity. It seems that the petitioner had not filed any objection against the same and therefore in response to his communication dated 22.12.2022, he was informed by respondent No.3 on 10.1.2023 that no objection had been received from him in relation to the provisional assessment notice. It is this communication which is under challenge in the instant petition.

Learned counsel for the petitioner submits that the provisional assessment notice was dispatched to the petitioner after the date fixed in the notice for hearing. He submits that the respondent-electricity department be directed to decide the objection as may be filed by the petitioner.

Learned counsel for the respondent-electricity department, Smt. Arti Raje has no objection to the same.

Accordingly, the instant petition is disposed of with liberty to the petitioner to file fresh objection along with true attested copy of the instant order against the provisional assessment notice within fifteen days from today and in which event, respondent No.3 shall decide the same by following the procedure prescribed under the Electricity Supply Code, 2005.

**Order Date :-** 28.2.2023

skv

**(Prashant Kumar, J.)**

**(Manoj Kumar Gupta, J.)**